

TENTATIVE RULING FOR July 2, 2026

Department S22 – Judge David Driscoll

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred during the Pandemic. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-22) at (909) 521-3529 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2207620

AGEGNEHU v. LEMMA

TENTATIVE RULING

On April 12, 2022, plaintiff Kaleab Agegnehu (Plaintiff) initiated the instant action against defendant Berhan S. Lemma (Defendant) and Does 1-10. The operative Complaint alleges three causes of action for: (1) specific performance, (2) breach of contract and (3) intentional infliction of emotional distress.

Plaintiff alleges on March 30, 2021, Defendant leased real property located at 82601 Texas Lane in Sandy Valley, California (the Property) to Plaintiff under a written lease agreement. Under the terms of the lease agreement, Defendant granted to Plaintiff an option to purchase the Property under certain conditions, however, Defendant is threatening to sell the Property to another buyer if Plaintiff does not exercise the option to purchase the Subject Property prior to the end of his option period. Plaintiff further alleges Defendant has also improperly raised the monthly rent on the Property. The instant action ensued.

The Discovery Motions.

On August 27, 2025, Plaintiff filed a motion to compel the deposition of the Defendant. The noticed hearing date was for October 27, 2025. On August 27, 2025, the plaintiff also filed separate motions to compel responses to form interrogatories and requests for production of documents. The noticed hearing dates for the motions to compel responses was October 23, 2025. All motions were served electronically on August 27, 2025, and directed to defendant's then attorney of record, Mark C. Earle. The noticed motions requested the awarding of monetary sanctions against the defendant and his attorney, Mark C. Earle.

Thereafter, on August 28, 2025, Defendant filed a substitution of attorney which substituted the Law Offices of James Arrasmith as new counsel in place of attorney Michael C. Earle.

On September 3, 2025, the plaintiff's Ex Parte Application to continue trial and reopen discovery was heard. Counsel for the plaintiff and attorney Estefania Parra, for the defendant, appeared. No opposition was presented. The minute order reflects that the court vacated the TRC and Trial dates, set new TRC and Trial dates, and granted the request to reopen discovery with continuation of cut-off and deadline dates according to code. The order does not vacate the pending discovery motion hearing dates of October 23 and 27.

Pursuant to instructions by the court, on September 4, 2025, plaintiff served and filed notice of the court's September 3 ruling. Said notice essentially parrots the court's September 3 minute order. The notice of ruling does not state that the court vacated the pending discovery motion hearings of October 23 and 27.

The discovery hearings went forward on October 23 (further responses to discovery) and October 27 (compel defendant's deposition). The court granted the motion to compel the defendant's deposition and granted the motions to compel responses to the request for production of documents and form interrogatories. There were no appearances by defense counsel and no opposition was presented. The court also granted the requests for monetary sanctions against defendant's counsel as to each of the motions. Minute Orders were issued by the court on the dates of the hearings, October 23 and October 27, respectively.

Pursuant to the court's instructions, the plaintiff submitted three proposed orders, which were filed and executed by the court as follows: November 10, 2025, compelling defendant's deposition; November 10, 2025, compelling responses to form interrogatories; and November 13, 2025, compelling responses to requests for production of documents. Each order imposes monetary sanctions against the defendant and his attorney, James Arrasmith.

Motion to Vacate.

On March 25, 2026, Defendant filed the instant Motion to Vacate Orders Entered November 10, 2025 and November 13, 2025 and Set Aside Sanctions, supported by a declaration from the Defendant and James L. Arrasmith. Plaintiff filed his Opposition to the Motion on June 18, 2026.

Defendant's Motion is presented pursuant to Code of Civil Procedure section 473, subdivision (d), which states as follows:

(d) The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.

Defendant moves under section 473, subdivision (d), to set aside the court's November 10, 2025 and November 13, 2025 orders as void orders. Defendant argues first that the subject discovery motions were directed at the actions of prior counsel, Michael C. Earle and cites to *Jansen Assocs. v. Codercard* (1990) 218 Cal. App. 3d 1166 for authority that sanctions do not migrate from one attorney to another without clear notice in the moving papers. Defendant further argues counsel was unaware that the hearings on the subject discovery motions were moving forward as the court granted the continuance of trial and reopened discovery, which mooted the basis for Plaintiff's ex-parte application for an accelerated hearing date. Finally, Defendant argues the court's November 10, 2025 and November 13, 2025 orders are voidable and subject to being set aside under Code of Civil Procedure section 473 as the subject orders

exceeded the scope of the motions. Specifically, Plaintiff's own moving papers sought sanctions against Michael C. Earle, but the court's orders imposed sanctions against James Arrasmith.

In his Opposition, Plaintiff maintains that Defendant's argument that he did not receive proper notice that the subject discovery motions remained on calendar after the court's continuance of the trial date is meritless. Specifically, Plaintiff argues the September 4, 2025 notice of ruling never stated that the subject discovery motions were taken off calendar, nor did it include any judicial order vacating or continuing those specific law and motion hearings. Plaintiff argues Defendant cannot avoid the consequences of failing to oppose properly noticed motions based on a subjective assumption that the hearings would not proceed. Plaintiff asserts that Defendant's requested relief under Section 473 is entirely unwarranted as Defendant's "predicament" is exclusively the result of his own total inaction. As to the issue of sanctions being imposed on James Arrasmith, Plaintiff argues under Code of Civil Procedure Section 2023.030, the court may sanction "any attorney advising" the misuse of discovery. Plaintiff's position is that the changing of counsel during the course of the litigation does not immunize an incoming attorney from the consequences of maintaining ongoing discovery noncompliance. Plaintiff argues counsel James Arrasmith substituted into this action with clear notice that discovery defaults were fully active, but failed to respond to the subject discovery requests and failed to respond to the subject motions.

Defendant's argument that the subject discovery motions are void as defendant and counsel were not provided with notice in violation of their due process rights is not well taken. Due process entitles a person to notice and the opportunity to be heard before a neutral decision-maker. (See, e.g., *Today's Fresh Start, Inc. v. Los Angeles County Office of Education* (2013) 57 Cal.4th 197, 212.) Notice of the underlying motions and hearing dates were timely and properly served on defendant and his then attorney of record. Due process was satisfied and defendant was afforded the opportunity to file opposition and be heard. Defendant's argument that he was "unaware" that the dates for the subject discovery motions were going forward following the court's order continuing trial is not persuasive. An attorney appeared on behalf of defense counsel's offices at the September 3 hearing. The minute order reflects that the court vacated the TRC and Trial dates, set new TRC and Trial dates, and granted the request to reopen discovery with continuation of cut-off and deadline dates according to code. **The order does not vacate the pending discovery motion hearing dates of October 23 and 27.** Additionally, the September 4, 2025 notice of ruling explicitly set forth which dates were impacted by the court's order granting Defendant's request to continue the trial date, and the subject discovery motions and their hearing dates were clearly not a part of the court's order. Counsel's unfounded assumption that the hearing dates for the subject motions were vacated and taken off calendar does not equate to a denial of due process rendering the orders void or voidable.

As to the court's order imposing sanctions on attorney James Arrasmith, the court may sanction "any attorney advising" the misuse of discovery. "Section 2023.030(a) by its terms requires a finding that an attorney has advised misuse of the discovery process before monetary sanctions may be imposed." (*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 85). Here, the subject discovery motions were filed prior to attorney James Arrasmith's substitution as counsel and the record contains no evidence that James Arrasmith advised misuse of the discovery process. Additionally, defense counsel's argument that the November orders awarding sanctions exceeded the scope of requested relief because the noticed motions sought sanctions against defendant's then attorney of record, Michael C. Earle, is well taken. Technically, there was no notice that sanctions would be sought as against attorney Arrasmith and in this limited respect there would be a denial of due process and an opportunity to be heard on the issue of sanctions. A court may impose sanctions "after notice to any affected party, person, or attorney, and after opportunity for hearing." (Code of Civ. Proc., § 2023.030.).

Attorney Arrasmith, as an affected person and attorney was not afforded notice of the pursuit of sanctions against him personally.

If a judgment is only partially void, and the void part is severable, that part alone may be collaterally attacked and the balance will remain effective. (*Perini v. Perini* (1965) 225 Cal.App.2d 399.) Based on the foregoing, the court intends to vacate the portion of its order imposing sanctions against James Arrasmith from its November 10, 2025 and November 13, 2025 orders as void, but hold that the remainder of the orders are not void or voidable.

TENTATIVE RULING

The Court grants Defendant's Motion in part as follows:

1. The court grants Defendant's request to vacate the portions of the subject orders which impose monetary sanctions against attorney James Arrasmith and the imposition of said sanctions is hereby vacated.
2. The court denies the request to vacate, in their entirety, the November 10, 2025 and November 13, 2025 orders pertaining to Plaintiff's motions to compel the deposition of the Defendant as well as motions to compel responses to form interrogatories and request for production of documents.
3. The court, on its own motion, takes judicial notice of all pleadings, minute orders and court orders referenced in its above decision.